



CHAPTER xvii.

An Act to enlarge the powers of the London Hydraulic Power Company as to the raising of capital the supply of water and the acquisition of a new site for their pumping station at Westminster and for other purposes. A.D. 1903.
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[30th June 1903.]

WHEREAS under the London Hydraulic Power Company's Acts 1871 to 1893 the share capital of the London Hydraulic Power Company (hereinafter called "the Company") consists in the aggregate of six hundred thousand pounds and the Company are authorised to borrow sums amounting in the aggregate to one hundred and fifty thousand pounds and it is expedient that the Company should be authorised to raise further money by shares and by borrowing and should also be empowered to take a further quantity of water from the River Thames for the purposes of their undertaking :

And whereas it is expedient that the Company on the one hand and the London County Council on the other hand should be empowered to enter into agreements for giving effect to the provisions contained in section 10 of the London County Council (Improvements) Act 1900 as hereinafter set forth :

And whereas the objects of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. This Act may be cited for all purposes as the London Hydraulic Power Company's Act 1903 and the London Hydraulic
[Price 9d.]
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Act, 1903.

A.D. 1903. — Power Company's Acts 1871 to 1893 and this Act may be cited as the London Hydraulic Power Company's Acts 1871 to 1903.

Incorporation of general Acts. **2.** The following parts of Acts are except where expressly varied by this Act incorporated with and form part of this Act (that is to say) :—

The provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (namely) :—

The distribution of the capital of the Company into shares ;

The transfer or transmission of shares ;

The payment of subscriptions and the means of enforcing the payment of calls ;

The forfeiture of shares for non-payment of calls ;

The remedies of creditors of the Company against the shareholders ;

The borrowing of money by the Company on mortgage or bond ;

The conversion of the borrowed money into capital ;

The consolidation of the shares into stock ;

The general meetings of the Company and the exercise of the right of voting by the shareholders ;

The making of dividends ;

The giving of notices ; and

The provision to be made for affording access to the special Act :

Part I. (relating to cancellation and surrender of shares)

Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts.

Interpretation. **3.** In this Act the several words and expressions to which meanings are assigned by the Acts partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction and the expression “superior courts” or “court of competent jurisdiction” or any other like expression in this Act or any Act partially incorporated herewith shall for the purposes of this Act be read and have effect as if the debt or demand with respect to which the expression is used were a simple contract debt and not a debt or demand created by statute.

4. The agreement dated the twenty-third day of June one thousand nine hundred and two and made between the Conservators of the River Thames of the one part and the Company of the other part as set forth in the schedule to this Act is hereby confirmed and made binding upon the parties thereto and may and shall be carried into effect notwithstanding anything contained in section 25 of the Wharves and Warehouses Steam Power and Hydraulic Pressure Company's Act 1871 and the Company may enter into and carry into effect agreements and arrangements with the said conservators for the pumping and using by the Company of tidal water from the River Thames and for the payment of rent royalty or other acknowledgment in respect of the taking of such water and subject to the provisions of the said agreement and of this Act the Company may take from the River Thames and use for the purposes of their undertaking and for distribution within their district the additional quantity of water provided for by the said agreement.

A.D. 1903.
 Amendment
 of section 25
 of Act of
 1871 and
 confirming
 scheduled
 agreement.

Notwithstanding anything in this Act or in the said agreement contained the Company shall only take water direct from the River Thames under the powers of this Act by means of pipes or intakes constructed in such position and manner that they shall not operate when the level of the water in the river falls below sixteen feet from Trinity high-water mark.

5. In addition to and supplemental of the provisions of section 10 of the London County Council Improvement Act 1900 the Company and the London County Council (in this section called "the council") may enter into and carry into effect agreements or arrangements with respect to the reinstatement of the Company's Westminster pumping station and dépôt upon lands acquired by the council under the powers of their said Act or otherwise and for the provision on or in connection with such lands of one or more storage tanks with wells adits drifts and pumping plant and also of one or more subways under public streets or roads for enabling intercommunication between various parts of the Company's Westminster dépôt when reinstated.

Agreements
 with London
 County
 Council.

But nothing in this Act contained shall be deemed to alter vary or extend otherwise than with their consent any liability of the council under the provisions of the said Act of 1900.

6. The Company may subject to the provisions of Part II. of the Companies Clauses Act 1863 raise any additional capital not exceeding in the whole two hundred thousand pounds by the issue

Power to
 raise addi-
 tional capital.

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A.D. 1903. at their option of new ordinary shares or stock or new preference shares or stock or wholly or partially by any one or more of those modes respectively but the Company shall not issue any share of less nominal value than ten pounds nor shall any share vest in the person accepting the same unless and until a sum not being less than one-fifth of the amount of such share shall have been paid in respect thereof.

New shares or stock to be subject to same incidents as other shares or stock.

7. Except as by this Act otherwise provided the capital in new shares or stock created by the Company under this Act and the new shares or stock therein and the holders thereof respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if that capital were part of the now existing capital of the Company of the same class or description and the new shares or stock were shares or stock in that capital. The capital in new shares or stock so created shall form part of the capital of the Company.

Dividends on new shares or stock.

8. Every person who becomes entitled to new shares or stock shall in respect of the same be a holder of shares or stock in the Company and shall be entitled to a dividend with the other holders of shares or stock of the same class or description proportioned to the whole amount from time to time called up and paid on such new shares or to the whole amount of such stock as the case may be.

Restriction as to voting in respect of preference shares or stock.

9. Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any new shares or stock to which a preferential dividend shall be assigned.

Power to borrow.

10. The Company may from time to time borrow on mortgage of their undertaking in respect of the additional capital of two hundred thousand pounds which they are by this Act authorised to raise any further sum or sums not exceeding in the whole the sum of fifty thousand pounds and of that sum they may from time to time borrow not exceeding ten thousand pounds in respect of each forty thousand pounds of the said additional capital but no part of any such sum of ten thousand pounds shall be borrowed until shares for so much of the portion of additional capital in respect of which it is borrowed as is to be raised by means of shares are issued and accepted and one half thereof is paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he

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so certifies that shares for the whole of such portion of additional capital have been issued and accepted and that one half thereof has been paid up and that not less than one-fifth part of the amount of each separate share in such capital has been paid on account thereof before or at the time of the issue or acceptance thereof and until stock for one half of so much of the said portion of additional capital as is to be raised by means of stock is fully paid up and the Company have proved to such justice as aforesaid before he so certifies that such shares or stock as the case may be were issued and accepted and to the extent aforesaid paid up *bonâ fide* and are held by the persons to whom the same were issued or their executors administrators successors or assigns and also so far as such capital is raised by shares that such persons or their executors administrators successors or assigns are legally liable for the same and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

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11. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than five thousand pounds in the whole.

For appoint-
ment of a
receiver.

12. The Company may create and issue debenture stock subject to the provisions of section 12 of the Act of 1889 Notice of the effect of that enactment shall be endorsed on all mortgages and certificates of debenture stock.

Debenture
stock.

13. If any money is payable to a shareholder or mortgagee or debenture stock holder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Receipt in
case of per-
sons not sui
juris.

14. All moneys raised under this Act whether by shares or stock or debenture stock or borrowing shall be applied only to the purposes of the Company to which capital is properly applicable.

Application
of moneys.

15. Nothing in this Act or in any of the London Hydraulic Power Company's Acts 1871 to 1893 shall exempt the Company from the provisions of any general Act for the improvement of the sanitary condition of towns or the abatement of nuisances now

Company not
exempt from
general Acts

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A.D. 1903. — in force or which may hereafter pass or from any enactments which may be hereafter from time to time made by Parliament for limiting the maximum dividends to be declared and paid by the Company or for restricting the powers of the Company to convert borrowed money into capital or for fixing and revising the rates and charges to be received by the Company or for giving all persons and corporations the right to avail themselves of the several works and appliances of the Company on payment of such rates and charges without preference or favour or for empowering the corporation of the City of London or other local authority to take and purchase the undertaking of the Company after the expiration of such term of years as Parliament shall determine with all the rights powers and authorities of the Company and either subject or not subject to their liabilities debts contracts and obligations at a price to be ascertained by arbitration in such manner as Parliament shall determine together with all proper provisions for effectuating the purposes aforesaid or for any one or more of such purposes exclusively of the others or other of them.

Costs of Act. **16.** All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

The SCHEDULE referred to in the foregoing Act.

A.D. 1903.

AN AGREEMENT made the twenty-third day of June one thousand nine hundred and two between the CONSERVATORS OF THE RIVER THAMES (hereinafter called "the conservators") of the one part and the LONDON HYDRAULIC POWER COMPANY (hereinafter called "the Company") of the other part.

WHEREAS the Company are by the London Hydraulic Power Acts 1871 and 1884 authorised and empowered to take at any point or points within their district under the said Acts and use for the purposes of their undertaking within their said district as they from time to time find requisite waters of the River Thames not exceeding in quantity in any one day (reckoned from midnight to midnight) an aggregate of one million gallons (which quantity is hereinafter referred to as “the authorised quantity”):

And whereas the Company are by the said Acts under an obligation to make to the conservators in consideration of the use by the Company of the water of the River Thames by the said Acts authorised the payments specified in the said Acts and (inter alia) when the daily quantity used by the Company exceeds seven hundred and fifty thousand gallons and until the same reaches one million gallons the sum of fifty pounds half-yearly on the first day of January and the first day of July in every year:

And whereas the Company have for some time past been taking and using for the purposes of their said undertaking water from the docks having tidal connection with the River Thames which water together with the water taken by the Company as aforesaid under the powers of the said Acts have exceeded the authorised quantity :

And whereas a question has arisen between the conservators and the Company as to whether the water taken by the Company from the said docks as aforesaid is water of the River Thames within the meaning of the said Acts :

And whereas for the purpose of settling the said question the Company have agreed that whether the water taken by them from the said docks as aforesaid is or is not water of the River Thames within the meaning of the said Acts they will make the payments hereinafter mentioned :

And whereas the Company intend shortly to apply to Parliament for a Bill conferring on them additional powers:

And whereas the Company have applied to the conservators for their permission to take and use for the purposes of their said undertaking and distribute within their said district as they from time to time find requisite

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A.D. 1903. water from the River Thames in excess of the authorised quantity which the conservators so far as they lawfully can or may have consented to grant for the consideration and upon the terms and conditions hereinafter expressed :

Now it is hereby mutually agreed by and between the conservators and the Company as follows :—

1. The Company from time to time may take at any point or points within their district under the London Hydraulic Power Acts 1871 and 1884 and may use for the purposes of their undertaking and distribute within their district under the said Acts such quantity of the water of the River Thames in addition to the authorised quantity as they shall from time to time find requisite.

2. The Company shall in consideration of the use by them of any quantity of the water of the River Thames in excess of the authorised quantity make the following payments half-yearly on the first day of January and the first day of July in every year to the conservators in addition to the payments by the Company to the conservators specified in the said Acts the first payment to be made on the first day of July one thousand nine hundred and two :—

- (A) If the daily quantity taken exceeds the authorised quantity but does not exceed two million gallons the sum of fifty pounds:
- (B) If the daily quantity taken exceeds two million gallons but does not exceed three million gallons the sum of one hundred pounds:
- (C) If the daily quantity taken exceeds three million gallons an additional sum of fifty pounds in respect of every million gallons in excess of three million gallons.

3. The payments mentioned in the last preceding clause (together with the payments specified in the said Acts) shall be the first charge on the net receipts of the Company in like manner as if the payments under this agreement were payments by the Company to the conservators under the said Acts.

4. The provisions of sections 28 29 30 and 31 of the Wharves and Warehouses Steam Power and Hydraulic Pressure Act 1871 shall apply to the water taken under this agreement in like manner as if it were water taken under the said Act.

5. The Company shall on the four usual quarter days make to the conservators a return in writing of the quantities of water taken by the Company from the said river at each of their pumping stations all water of the River Thames including water taken from any dock or docks having tidal connection with the River Thames and from any well or wells supplied from the said river or any such dock.

6. In calculating the payments to be made by the Company to the conservators under clause 2 hereof the quantity of water taken by the Company shall be calculated on an average of the daily quantities taken by the Company as shown by the returns made by the Company to the conservators under clause 5 hereof.

7. Nothing herein contained shall affect the provisions of section 32 of the Wharves and Warehouses Steam Power and Hydraulic Pressure Act 1871.

8. In the event of the Company at any time hereafter applying to Parliament for a Bill conferring on them additional powers or for any other purpose the Company shall seek the authority of Parliament to confirm the provisions of this agreement in any such Bill.

9. In the event of the non-payment by the Company of the amounts payable to the conservators under clause 2 hereof for a period of one calendar month after the same shall have become payable or on any breach or non-observance by the Company of any of the conditions hereof this agreement shall forthwith cease and determine but without prejudice to any remedy or claim which the conservators may have against the Company in respect thereof.

10. The Company shall not assign or part with the benefit of this agreement without the previous consent in writing of the conservators.

In witness whereof the conservators and the Company have caused their respective common seals to be hereunto affixed the day and year first above written.

The common seal of the Conservators of the River Thames was hereunto affixed by order of the said conservators in the presence of

L.S.

ROBERT PHILIPSON

Secretary of the said Conservators.

The common seal of the London Hydraulic Power Company was affixed hereto in the presence of

L.S.

GEO. GRAY

Secretary.

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